

Research Methodology in CS (CSEG3060_3)

Lecture 1: Nature and Process of Intellectual Property: Introduction, definition, scope, importance, and evolution of Intellectual Property Rights (IPR); categories of IP and the overall process of protection.

Unit 5: Intellectual Property and Patents • Mapped Course Outcome: CO1

Lecture 1: Nature and Process of Intellectual Property

Unit 5: Intellectual Property and Patents

Research Methodology in Computer Science (CSEG3060_3) | B.Tech (CS) | Semester 5

Learning Objectives

By the end of this lecture, students should be able to:

1. Define Intellectual Property (IP) and Intellectual Property Rights (IPR) with reference to international conventions and Indian statutes.
2. Trace the historical evolution of IPR from medieval guild systems to the modern TRIPS-compliant framework.
3. Distinguish between the major categories of intellectual property and identify the subject matter each category protects.
4. Explain the overall process of securing IP protection, from conception to grant.
5. Appreciate the strategic role of IPR in computer science research, software development, and innovation management.
6. Recognise the ethical and legal responsibilities of researchers in disclosing and protecting original work.

Mapped Course Outcome: CO1 — Understand the foundational concepts, frameworks, and methodologies relevant to research in computer science, including the institutional and legal structures governing knowledge creation.

1. Introduction

Computer science is fundamentally a discipline of knowledge creation. From the design of novel algorithms and data structures to the engineering of compilers, operating systems, machine learning architectures, and distributed protocols, every original contribution constitutes a form of intellectual output. The legal frameworks that protect such outputs collectively fall under the domain of **Intellectual Property Rights (IPR)**.

In contemporary research, the question is no longer whether to protect an innovation, but rather how, where, and to what extent. The rapid commercialisation of software, the rise of artificial intelligence, the proliferation of open-source ecosystems, and the strategic value of patents in standard-essential technologies have made IPR literacy an indispensable competency for every computer science professional.

This lecture establishes the conceptual foundation for the unit. It introduces the definition, scope, importance, and historical evolution of IPR; surveys the principal categories of IP; and outlines the procedural architecture of the protection system. Subsequent lectures will examine each category in depth, with particular emphasis on patents, which form the central concern of this unit.

2. Defining Intellectual Property and Intellectual Property Rights

2.1 Intellectual Property (IP)

Intellectual Property refers to creations of the mind — inventions, literary and artistic works, designs, and symbols, names, and images used in commerce. The term encompasses both *tangible expressions* of intangible ideas and the *legal entitlements* that vest in the creator.

The most widely cited international definition is provided by the **World Intellectual Property Organization (WIPO)**, which characterises IP as:

"Creations of the mind: inventions, literary and artistic works, designs and symbols, names and images used in commerce."

A complementary, more legally precise formulation appears in Article 1(2) of the **Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS), 1994**, which obliges member states of the World Trade Organization to provide protection for the following categories of IP:

- Copyright and related rights
- Trademarks

- Geographical indications
- Industrial designs
- Patents
- Layout designs of integrated circuits
- Undisclosed information (including trade secrets)
- Plant varieties (optional)

2.2 Intellectual Property Rights (IPR)

IPR refers to the *legal rights* that arise from the creation and use of intellectual property. These rights grant the creator or owner an exclusive, time-limited monopoly over the exploitation of the creation, subject to the public policy objectives of the granting jurisdiction.

The essential characteristics of IPR are:

Characteristic	Description
Negative Right	IPR confers the right to <i>exclude others</i> from exploiting the creation; it does not automatically confer the right to <i>use</i> the creation.
Territoriality	Rights are bounded by the jurisdiction of the granting authority. A patent in India does not, by itself, confer rights in the United States.
Temporal Limitation	All IP rights are time-bound. Copyright typically subsists for the life of the author plus sixty years (in India); patents usually last for twenty years from the date of filing.
Assignable and Licensable	Rights can be transferred by assignment, licensing, or succession, enabling commercial exploitation.
Statutory Origin	IPR exists <i>only</i> because a statute recognises it; there is no natural-law basis for IP in modern jurisprudence.

2.3 Indian Statutory Framework

India provides for IP protection through a comprehensive set of statutes, including:

- **The Patents Act, 1970** (as amended in 1999, 2002, and 2005 to comply with TRIPS)
- **The Copyright Act, 1957** (as amended)
- **The Trade Marks Act, 1999**
- **The Designs Act, 2000**

- **The Geographical Indications of Goods (Registration and Protection) Act, 1999**
 - **The Semiconductor Integrated Circuits Layout-Design Act, 2000**
 - **The Protection of Plant Varieties and Farmers' Rights Act, 2001**
 - **The Information Technology Act, 2000** (relevant to software, databases, and digital rights)
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3. Scope of Intellectual Property Rights

The scope of IPR is best understood along three dimensions:

3.1 Subject-Matter Scope

IPR covers a vast spectrum of intangible creations, including:

- **Technical creations:** inventions, industrial processes, product designs, software-implemented innovations, biotechnological inventions.
- **Cultural and informational creations:** literary works, musical compositions, films, broadcasts, computer programs, databases.
- **Commercial identifiers:** trademarks, brand names, logos, domain names, trade dress.
- **Geographical and traditional markers:** geographical indications, appellations of origin, traditional knowledge.
- **Confidential knowledge:** trade secrets, know-how, customer lists, formulae.

3.2 Spatial (Territorial) Scope

IPR is fundamentally territorial. Each jurisdiction has its own legal regime, and rights must be secured in each country where protection is desired. International conventions (Paris Convention, Berne Convention, Patent Cooperation Treaty) provide procedural mechanisms for streamlined multi-jurisdictional filing but do not create a *global* IP right.

3.3 Temporal Scope

Each category of IP carries its own term of protection, balanced to reconcile the private interest of the creator with the public interest in dissemination. Once the term expires, the creation enters the **public domain** and may be freely used by all.

4. Importance of Intellectual Property Rights

IPR is not merely a legal construct; it is a critical instrument of economic policy, scientific progress, and competitive strategy. For computer science researchers, its importance may be examined

under the following heads.

4.1 Incentive to Innovation

IPR provides a **time-limited monopoly** that allows innovators to recover the costs of research and development and to earn a reasonable return on investment. Without this incentive, the free-rider problem would discourage socially beneficial investment in risky or costly research.

4.2 Encouragement of Disclosure

The patent system, in particular, embodies a **quid pro quo**: the inventor discloses the invention in sufficient detail to enable a person skilled in the art to practise it, in exchange for a limited monopoly. This enriches the public domain of technical knowledge and prevents the indefinite secrecy of useful innovations.

4.3 Facilitating Technology Transfer

IP rights are the currency of technology transfer. Licensing arrangements, joint ventures, university–industry collaborations, and cross-border R&D partnerships all depend on a well-functioning IP regime that defines the rights being exchanged.

4.4 Attracting Investment

A robust IP regime reduces investment risk. Venture capital, private equity, and corporate R&D funding are channelled preferentially into jurisdictions where innovations can be securely protected and where infringement can be meaningfully remedied.

4.5 Competitive and Strategic Value

IP portfolios — patent thickets, trademark families, copyright catalogues — constitute **intangible assets** of considerable value. They are used offensively (to assert market exclusivity) and defensively (to deter litigation, cross-license, and establish bargaining positions). In computer science, the strategic use of standard-essential patents (SEPs) in telecommunications (3G, 4G, 5G, Wi-Fi) and the use of patents as defensive arsenals by firms such as IBM, Qualcomm, and Google illustrate the strategic dimension.

4.6 Ethical and Professional Responsibility

Researchers have an ethical obligation to attribute prior work correctly (avoiding plagiarism), to respect the IP rights of others, and to disclose inventions made in the course of employment in accordance with institutional and contractual obligations. Familiarity with IPR is therefore part of the responsible conduct of research.

4.7 Importance Specific to Computer Science

Several features of the computer science field make IP particularly salient:

- **Software is both functional and expressive**, blurring the line between patentable subject matter and copyrightable expression.
 - **Open-source licensing** has created a complex ecosystem in which rights are granted conditionally and must be carefully managed.
 - **Algorithms and business methods** have been the subject of jurisdictional divergence — patentable in the United States under certain conditions, generally not patentable in India and Europe.
 - **Data and databases** raise novel questions at the intersection of copyright, sui generis database rights, and confidentiality.
 - **AI-generated works** challenge the foundational requirement of human authorship in copyright law.
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5. Evolution of Intellectual Property Rights

The modern IP regime is the product of a centuries-long evolution shaped by commerce, technology, and political philosophy.

5.1 Early Origins

The earliest recorded grant of a patent-like privilege appears in **Venice in 1474**, in a statute that protected inventions for a period of ten years. The Statute conferred on the inventor the exclusive right to make and use the invention, provided that the invention was new and useful. Venetian glassmakers and other artisans were thereby induced to disclose their techniques rather than maintain them as guild secrets.

In **England**, the Statute of Monopolies of 1624 ended the Crown's practice of granting arbitrary monopolies but preserved a specific exception for inventions, laying the doctrinal foundation for the modern patent system. The Statute of Anne of 1710 is generally regarded as the foundation of modern copyright.

5.2 The 19th Century: International Coordination

The 19th century witnessed the rise of international IP conventions, reflecting the increasing globalisation of trade:

- **Paris Convention for the Protection of Industrial Property (1883)** — established the principle of national treatment and the right of priority for patents, trademarks, and industrial designs.

- **Berne Convention for the Protection of Literary and Artistic Works (1886)** — established automatic copyright protection without formalities, based on the principle of national treatment.
- **Madrid Agreement (1891)** — facilitated international registration of trademarks.

5.3 The 20th Century: Institutionalisation and Globalisation

- **Patent Cooperation Treaty (PCT), 1970** — administered by WIPO, the PCT provides a unified procedure for filing patent applications in multiple jurisdictions through a single international application.
- **Budapest Treaty on the International Recognition of the Deposit of Microorganisms (1977).**
- **TRIPS Agreement, 1994** — administered under the WTO, TRIPS is the most comprehensive multilateral IP agreement in force. It sets minimum standards of protection across all categories of IP and binds all WTO member states.
- **WIPO Copyright Treaty (WCT) and WIPO Performances and Phonograms Treaty (WPPT), 1996** — extended copyright protection to the digital environment.

5.4 Evolution of IP in India

India's IP history is marked by a tension between indigenous knowledge systems and the colonial legacy of British IP law.

- **Pre-independence:** The Indian Patents and Designs Act of 1911 governed the patent system during the colonial period. It allowed product patents in all fields, including pharmaceuticals and agrochemicals.
 - **Post-independence:** Recognising the need to balance IP protection with public welfare, particularly in pharmaceuticals and agriculture, India enacted the **Patents Act of 1970**, which restricted product patents in pharmaceuticals and agrochemicals while permitting process patents.
 - **TRIPS Compliance:** Following the Uruguay Round and the establishment of the WTO, India amended the Patents Act in **1999, 2002, and 2005**, ultimately reintroducing product patents across all fields of technology (with effect from 1 January 2005).
 - **Contemporary Developments:** India has continued to refine its IP regime, with the **National Intellectual Property Rights Policy (2016)** providing a comprehensive roadmap. Recent initiatives include the establishment of specialised IP benches in high courts, the launch of the **IPR Awareness Campaign**, and the operationalisation of the **IP Facilitating Centre**.
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6. Categories of Intellectual Property

The taxonomy of IP can be presented in several ways. The classification adopted here follows the TRIPS framework, with a brief description of each category. Detailed treatment of each category will follow in subsequent lectures.

6.1 Patents

A **patent** is an exclusive right granted for an invention, which is a **new, non-obvious, and useful** (or industrially applicable) product or process. The patent confers on its owner the right to exclude others from making, using, selling, offering for sale, or importing the patented invention for a limited period (twenty years from the date of filing in most jurisdictions).

In computer science, the patentability of software-implemented inventions remains a contested area. Under **Section 3(k) of the Indian Patents Act, 1970**, "a mathematical or business method or a computer program per se or algorithms" are not patentable. However, inventions that combine software with a novel hardware contribution or that produce a technical effect are often patentable. This topic is examined in detail in later lectures.

6.2 Copyright

Copyright protects original literary, dramatic, musical, and artistic works, including computer programs, databases, and cinematographic films. It subsists automatically upon creation (without registration in India, though registration confers certain procedural advantages) and protects the *expression* of an idea, not the idea itself.

For computer scientists, copyright subsists in:

- The source code and object code of software.
- The user interface, screen displays, and graphic elements.
- The textual and visual content of documentation.
- Compilations of data (subject to the originality of selection and arrangement).

6.3 Trademarks

A **trademark** is a distinctive sign, word, logo, slogan, colour, sound, or combination thereof that identifies and distinguishes the goods or services of one undertaking from those of another. Registration grants the owner the exclusive right to use the mark in connection with the specified goods or services.

In computer science, trademarks protect brand names (Google, Microsoft, Linux — although "Linux" remains a trademark of Linus Torvalds), logos, and product identifiers.

6.4 Industrial Designs

Industrial design refers to the visual or ornamental features of an article, such as its shape, pattern, or configuration. Protection is granted for designs that are new and original and are applied to an article by an industrial process. The design must appeal to the eye and not be dictated solely by function.

Examples in computer science include the distinctive shapes of laptop chassis, smartphone exteriors, and peripheral devices.

6.5 Geographical Indications (GIs)

A **geographical indication** is a sign used on goods having a specific geographical origin, where a given quality, reputation, or other characteristic is essentially attributable to that origin. Examples include *Darjeeling Tea*, *Basmati Rice*, and *Chanderi Saree*.

While GIs are less directly relevant to computer science research, they are increasingly relevant in contexts where software or data products are associated with regional craftsmanship or culturally specific knowledge.

6.6 Trade Secrets

A **trade secret** is confidential business information that provides a competitive edge, such as a formula, process, technique, algorithm, or customer list. Protection is conditional upon the owner taking reasonable steps to maintain its secrecy. Trade secrets are protected without registration, primarily under contract law and equitable principles.

Notable examples include the **Coca-Cola formula**, the **Google search algorithm** (the precise weighting factors of which have never been publicly disclosed), and proprietary training data of large language models.

6.7 Layout Designs of Integrated Circuits

The **layout design** (or topographies) of integrated circuits — the three-dimensional configuration of the electronic circuits of an integrated circuit — is protected under the Semiconductor Integrated Circuits Layout-Design Act, 2000 in India. This category of IP is particularly relevant to chip design and semiconductor manufacturing.

6.8 Plant Varieties

Plant varieties are protected under the Protection of Plant Varieties and Farmers' Rights Act, 2001. While this category is of limited direct relevance to most computer scientists, it is increasingly pertinent to computational biology, bioinformatics, and agricultural informatics.

6.9 Summary Table

Category	Subject Matter	Term (India)	Registration Required?
Patent	Invention (product/process)	20 years	Yes
Copyright	Literary, artistic, musical works; software	Life + 60 years	No (registration optional)
Trademark	Distinctive signs identifying goods/services	10 years (renewable)	Yes
Industrial Design	Ornamental design of an article	10 years (extendable to 15)	Yes
Geographical Indication	Goods with quality attributable to origin	10 years (renewable)	Yes
Trade Secret	Confidential information	Indefinite (subject to secrecy)	No
Layout Design	3D configuration of integrated circuit	10 years	Yes
Plant Variety	New, distinct, uniform, stable variety	Varies (15–18 years)	Yes

7. The Overall Process of IP Protection

While each category of IP has its own procedural regime, the protection process shares a common architecture. For patents, the process is most elaborate and serves as a useful paradigm.

7.1 The Generic Process

Step 1: Identification of the IP

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Step 2: Prior Art / Prior Right Search

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Step 3: Determining the Category of Protection

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Step 4: Drafting and Filing the Application

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Step 5: Formal and Substantive Examination

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Step 6: Grant / Registration

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Step 7: Post-Grant Maintenance and Renewal

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Step 8: Enforcement (in case of infringement)

7.2 Stage-wise Description

Stage 1 — Identification of the IP. The researcher must determine whether the subject matter qualifies as an IP asset. Not every output of research is protectable; mere ideas, abstract principles, natural phenomena, and discoveries are not.

Stage 2 — Prior Art / Prior Right Search. A systematic search is conducted to determine whether the subject matter is new (novelty) and non-obvious. Prior art for patents includes any disclosure anywhere in the world before the filing date. For trademarks, prior rights include earlier identical or similar marks. For copyright, prior publication establishes the existence of an earlier work.

Stage 3 — Determining the Category of Protection. A single innovation may be protected under multiple IP categories. A new software-implemented invention, for example, may be protected simultaneously by copyright (on the code), patent (on the underlying technical contribution, if patentable), trademark (on the product name), trade secret (on confidential implementation details), and design registration (on the visual interface).

Stage 4 — Filing the Application. The application is filed with the appropriate IP office — in India, the Office of the Controller General of Patents, Designs, and Trade Marks (CGPDTM) under the

Department for Promotion of Industry and Internal Trade (DPIIT). International filings may proceed under the PCT for patents, the Madrid System for trademarks, and the Hague System for designs.

Stage 5 — Examination. The application undergoes formal examination (compliance with procedural requirements) and substantive examination (compliance with substantive criteria such as novelty, inventive step, and industrial applicability for patents). In India, patent applications are examined only upon request (or "on request" examination), which must be made within forty-eight months of the priority date.

Stage 6 — Grant. If the application satisfies all requirements, the IP is granted/registered, and the owner acquires enforceable rights.

Stage 7 — Post-Grant Maintenance. Most IP rights require periodic renewal (annually for patents in some jurisdictions, every ten years for trademarks in India). Failure to renew results in lapse.

Stage 8 — Enforcement. The owner enforces rights through civil litigation (injunction, damages, accounts of profits), criminal prosecution (where applicable), and administrative remedies (customs seizure of infringing imports).

7.3 An Illustrative Case: Patent Process in India

Consider a hypothetical computer science researcher who has developed a novel method for detecting network intrusions using a machine learning architecture optimised for edge devices. The process might proceed as follows:

1. The researcher documents the invention in a patent specification, including claims that delineate the scope of protection sought.
2. A prior art search is conducted across patent databases (Indian Patent Office, USPTO, EPO, WIPO) and non-patent literature (IEEE Xplore, ACM Digital Library, arXiv).
3. An application is filed either directly in India (provisional or complete) or under the PCT, designating India.
4. The applicant requests examination within forty-eight months of the priority date.
5. The Controller examines the application for novelty, inventive step, industrial applicability, and sufficiency of disclosure, including compliance with Section 3(k).
6. The application is published, and third parties may file pre-grant oppositions under Section 25(1).
7. If granted, the patent is published in the Patent Office Journal.
8. The patent is renewed annually after the seventh year.
9. In case of infringement, the patentee may file a suit in a District Court or the relevant High Court.

8. Practical Examples and Case Studies

8.1 *Alice Corp. v. CLS Bank International*, 573 U.S. 208 (2014) — United States

The U.S. Supreme Court held that abstract ideas implemented on a generic computer are not patent-eligible. The decision narrowed the scope of software patents in the United States and is frequently cited in comparative discussions of software patentability. It contrasts with the Indian approach under Section 3(k), which excludes computer programs per se and algorithms but does not adopt the "abstract idea" test.

8.2 *Novartis AG v. Union of India*, (2013) 6 SCC 1 — India

The Indian Supreme Court denied a patent to Novartis for the beta crystalline form of imatinib mesylate (the cancer drug Gleevec). The decision turned on Section 3(d) of the Patents Act, which denies patents for new forms of known substances unless they demonstrate significantly enhanced efficacy. The case is significant for its balancing of innovation incentives against public health concerns.

8.3 *Google LLC v. Oracle America, Inc.*, 593 U.S. ____ (2021) — United States

The U.S. Supreme Court held that Google's use of Oracle's Java API declarations in its Android operating system constituted fair use under copyright law. The case illustrates the difficult boundary between copyright protection (the literal code) and the freedom to interoperate using functional interfaces.

8.4 India's Open Source Software Ecosystem

India's policy of encouraging open-source software in government and public systems reflects a strategic choice to use IP regimes flexibly. The Open Source Software (OSS) policy of the Government of India exemplifies how IPR can be managed collectively through licensing frameworks (GPL, MIT, Apache) rather than exclusive proprietary rights.

8.5 Traditional Knowledge Digital Library (TKDL)

The **TKDL**, a collaborative initiative between the Council of Scientific and Industrial Research (CSIR), the Ministry of Science and Technology, and the Ministry of AYUSH, documents traditional Indian medical knowledge in a digital format to prevent its wrongful patenting abroad. The TKDL is a striking example of using IP tools (defensive disclosures and prior art documentation) to protect public goods.

9. Key Takeaways

1. Intellectual Property refers to creations of the mind, and Intellectual Property Rights are the legal entitlements that vest in creators.
 2. IPR is territorial, time-limited, statutory in origin, and operates as a negative right to exclude others.
 3. The historical evolution of IPR — from Venetian statutes to the TRIPS Agreement — reflects an ongoing negotiation between private reward and public benefit.
 4. The major categories of IP include patents, copyrights, trademarks, industrial designs, geographical indications, trade secrets, layout designs of integrated circuits, and plant varieties.
 5. The process of IP protection follows a common architecture of identification, search, drafting, filing, examination, grant, maintenance, and enforcement.
 6. For computer science researchers, IPR literacy is essential for protecting innovations, avoiding infringement, navigating open-source ecosystems, and understanding the strategic dimensions of standards-essential patents.
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10. Summary

This lecture has laid the conceptual foundation for the unit by examining the nature, definition, scope, importance, and historical evolution of Intellectual Property Rights. It has surveyed the principal categories of IP, with reference to the TRIPS framework and the Indian statutory regime, and outlined the procedural architecture of the protection process. The strategic importance of IPR for computer science research has been highlighted through historical milestones, contemporary case law, and policy developments such as the Traditional Knowledge Digital Library.

Subsequent lectures will examine each category of IP in depth, beginning with patents — the central concern of this unit and a matter of particular salience for computer science research.

11. Exam Preparation Tips and Practice Questions

Preparation Tips

- **Memorise the definitions** with precision. Examiners frequently test the formal definition of IP, IPR, and each category.
- **Master the TRIPS framework** as the international benchmark; relate Indian statutes to TRIPS obligations.

- **Draw comparison tables** for categories of IP (subject matter, term, registration requirement).
- **Connect theory to practice** by referencing at least two or three landmark cases (e.g., *Novartis*, *Alice Corp.*, *Google v. Oracle*).
- **Practice flow diagrams** of the patent process; examiners often test procedural knowledge.
- **Avoid common errors:** do not confuse copyright with patent, do not assume copyright protects ideas, do not conflate territoriality with universality.

Practice Questions

Short Answer Questions

1. Define Intellectual Property Rights. State any four salient features of IPR.
2. Distinguish between copyright and patent with respect to subject matter, term, and registration.
3. What is meant by the principle of territoriality in IPR?
4. Briefly explain the contribution of the Paris Convention (1883) to the international IP system.
5. State the categories of IP protected under the TRIPS Agreement.

Long Answer Questions

1. Discuss the evolution of Intellectual Property Rights from the Venetian Statute of 1474 to the TRIPS Agreement of 1994. Highlight the major milestones.
2. Examine the importance of Intellectual Property Rights in the context of computer science research and innovation.
3. Explain the major categories of intellectual property with examples from the field of computer science.
4. Describe the overall process of patent protection in India. How does it differ, in broad outline, from copyright registration?
5. Critically examine the role of the Traditional Knowledge Digital Library (TKDL) in the protection of India's intellectual heritage.

Application-Oriented Questions

1. A team of researchers at a university develops a novel routing algorithm for low-power IoT networks that demonstrates a measurable technical improvement over existing methods. Identify the IP categories under which this invention may be protected and outline the steps the team should take before publishing their research.
2. A startup has released a software product. Discuss what categories of intellectual property should be secured and why.

3. Critically analyse whether an AI-generated algorithm can be the subject of a patent under the Indian Patents Act, 1970. What legal and policy considerations arise?
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12. References

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 9. Bainbridge, D. *Intellectual Property*. Pearson (latest edition).
 10. Office of the Controller General of Patents, Designs and Trade Marks. *Annual Report* (latest edition).
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These notes are intended as supplementary academic material and should be read alongside the prescribed textbook, primary statutory texts, and contemporary case law. Students are encouraged to consult the official websites of WIPO (wipo.int), the Indian Patent Office (ipindia.gov.in), and the World Trade Organization (wto.org) for the most current information.